Minutes of the Special Meeting of the Council of the Corporation of the Town of Ajax Held Electronically on Monday, November 9, 2020 Immediately following the General Government Committee Meeting

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Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		A. Khan
		L. Bower

1. Call to Order

Mayor Collier called the meeting to order at 3:54 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Durham Live MZO Update and Discussion re: Motion to MNRF

Members of Council sought clarification regarding negotiations by the Town for the Durham Live MZO matter. Shane Baker, Chief Administrative Officer, provided a summary of discussions with the City of Pickering, Region of Durham and Steve Apostolopoulos of Triple Properties Group regarding the Durham Live MZO. He noted that during the negotiation process the City of Pickering declined revenue sharing with the Town and that conversations had broken down. S. Baker shared information about his discussions with S. Apostolopoulos regarding opportunities to establish a community benefit, such as through a naming rights agreement as part of a public-private partnership. Mayor Collier provided context and a summary of his participation in discussions on the Durham Live MZO matter.

Members of Council asked questions regarding the development impact on provincially significant wetlands within the proposed development area, and the responsibility and authority of the Toronto and Region Conservation Authority in the MZO approval process, MZO precedence involving reclassification of provincially significant wetlands, and next steps. S. Baker and Geoff Romanowski, Director of Planning & Development Services, responded to questions from Council Members.

Mayor Collier vacated the Chair. Regional Councillor Lee assumed the Chair.

Mayor Collier and Regional Councillor Dies introduced the motion and reviewed its contents. Mayor Collier and G. Romanowski responded to questions on the motion from Council Members.

Moved by: S. Collier
Seconded by: J. Dies

WHEREAS a significant portion - 22.8 hectares (57 acres) - of the Lower Duffins Creek Wetland Complex, comprised of key natural heritage features and key hydrological features including Provincially Significant Wetland (PSW), Significant Woodland, and Significant Wildlife Habitat designated in 2005, and which is likely, according to the Toronto and Region Conservation Authority (TRCA), to have Endangered Species habitat and seeps, is being threatened by a senseless development plan approved by Minister Steve Clark through a Minister's Zoning Order (MZO) to by-pass consultation, provincial policy restrictions, appeals processes, consideration of transportation infrastructure, environmental impacts, etc.;

AND WHEREAS this significant portion of the PSW, located west of Squires Beach Road, north of Bayly Street and south of Highway 401 in Pickering, will be destroyed in its entirety, and filled in to fast track the construction of up to 4 million square feet of warehousing adjacent to the Durham Live project;

AND WHEREAS according to the Ministry of Municipal Affairs and Housing (MMAH) website, MZOs for new development are "generally not permitted on PSWs, prime agricultural lands,[…] and areas susceptible to flooding or where fish or wildlife habitats will be disturbed", and the Provincial Policy Statement, overseen by MMAH, directs that natural features and areas shall be protected for the long term (policy 2.1.1) and that development and site alteration shall not permitted in PSWs (policy 2.1.4);
AND WHEREAS the TRCA unanimously opposed development of provincially significant wetlands (resolution dated October 23, 2020) based on their mandate under the Conservation Authorities Act to ensure protection of wetlands like these, and stated subsequently that there is no precedent to reclassify PSWs;

AND WHEREAS The uncertainty about the TRCA's cooperation in reclassifying these lands has resulted in legislation that would, if passed, allow the Minister of Natural Resources and Forestry (MNRF) to take over the approvals process (proposed Bill 229, Budget Measures Act, 2020) in order to reclassify the land and issue permits to push forward the MZO, but the consequences of these changes would be ongoing and far-reaching to impact other municipalities and projects;

AND WHEREAS a joint letter sent to the Ministers of MMAH and MNRF by six environmental groups (dated October 29, 2020) underscores the rarity and importance of such forested swamps in urban settings, with significant value for wildlife, fisheries and recreation, and estimates (based on a MNRF-commissioned study in 2009) that the societal benefits of this urban wetland would exceed $3 million/year;

AND WHEREAS Environmental Defence, Ontario Nature, Ecojustice, Wilderness Committee, David Suzuki Foundation and Rescue Lake Simcoe Coalition represent and reflect the pulse of environmentalism in Ontario, and have received an outpouring of more than 7,500 (as of Nov. 6th) emails from concerned residents opposing development on

these sensitive natural heritage features;

AND WHEREAS the Minister of MNRF, in a letter to the CEO of the TRCA (dated October 24, 2020) requested that support be considered, and encouraged a negotiated compensation agreement between the parties (TRCA and Durham Live), however, there is no formalized "offsetting" policy in Ontario. Without precedent or policy in place to guide any reclassification process, it is likely that the offset will be a cash-based offer following the TRCA's Ecosystem Compensation Guideline (not designed for PSWs) as it would be next to impossible to find another large swath of urban land in Pickering (and even more difficult to find south of the 401) to create new wetland with the equal benefits;

AND WHEREAS Durham Live's own planning consultant has stated that the planned development on these lands "would result in the removal of the wetland and upland habit in their entirety" and a Wetland Strategy Advisory Panel (appointed by MNRF in 2018) recommended that PSWs remain strictly off limits to development and offsetting;

AND WHEREAS several strategies, reports, plans and recommendations released by the Province of Ontario emphasize the ecological and financial importance of conserving existing wetlands including: Ontario's Flooding Strategy 2020; An Independent Review of the 2019 Flood Events in Ontario by Ontario's Special Advisor on Flooding; and, Ontario's Wetland Conservation Strategy 2017-2030;

AND WHEREAS there are large areas of vacant employment lands in Pickering and other areas in Durham that do not require the destruction of PSWs.

Therefore be it resolved that:

1. Ajax Council strongly urges Hon. John Yakabuski, Minister of Natural Resources and Forestry to not declassify or issue permits to build on any part of the Lower Duffins Creek Wetland Complex to remove PSW status, and to keep it in its natural state as scientifically assessed, recognized and protected;

2. We further request that MNRF require additional environmental impact studies, including 3-season assessments, and post for comment to justify any reclassification and/or compensation of PSWs;

3. Ajax Council requests that the TRCA Executive Committee not approve a permit application to the property owner under the current Conservation Authorities Act;

4. Ajax Council reaffirms our opposition to the Minister's Zoning Order for the Durham Live subject lands;

5. Ajax Council relays it reliance on and support for the work done by Conservation Authorities across the Province of Ontario, as experts in their fields, and does not support proposed changes to the fiduciary responsibility of elected officials on Conservation Authority Boards of Directors;

6. That this resolution be shared with: Hon. Steve Clark, Minister of Municipal Affairs and Housing; Hon. John Yakabuski, Minister of Natural Resources and Forestry; Hon. Rod Phillips, Minister of Finance and MPP for Ajax; Hon. Peter Bethlenfalvy, President of the Treasury Board and MPP for Pickering-Uxbridge; John Henry, Durham Region Chair; all Regional Chairs in the Province of Ontario; Mayor Cam

Guthrie, Chair, Ontario Big City Mayors; Durham Region municipalities, Durham MPPs, John MacKenzie, CEO, TRCA and Tim Gray, Executive Director, Environmental Defence.

Recorded Vote:

In Favour: Mayor Collier, Councillor Bower, Regional Councillor Crawford, Regional Councillor Dies, Councillor Khan, Councillor Tyler Morin, Regional Councillor Lee

Opposed: None

CARRIED

Mayor Collier resumed the Chair.

Members of Council sought clarification on the position of Council regarding development of the provincially significant wetlands and opposition of the MZO throughout the negotiation process and expressed their disappointment in the breakdown of negotiations. Mayor Collier, S. Baker and G. Romanowski responded to questions from Council Members.

4. COVID-19 Response Funding – Phase 2

C. McLardie, Manager of Manager of Public & Strategic Affairs, provided an update to Council on the introduction of a second wave of $25,000 in funding for local not-for-profit community organizations to assist with COVID-19 response and relief.

5. Confirming By-Law

Moved by: S. Lee
Seconded by: L. Bower

That By-law number 44-2020 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its special meeting held on November 9, 2020 be read a first, second and third time and passed.

CARRIED

6. Adjournment

Moved by: A. Khan
Seconded by: M. Crawford

That the November 9, 2020 special meeting of the Council of the Town of Ajax be adjourned. (5:22 p.m.)

CARRIED

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Mayor

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Acting D-Clerk